

Line 6

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

SECOND OSBORN LLC, a Delaware limited liability company,

Plaintiff,

v.

BRENT WEITEH LEE, an individual; LE GARDEN HA, LLC, a California limited liability company; LE GARDEN HC, LLC, a California limited liability company; LE GARDEN HD, LLC, a California limited liability company; LE GARDEN HOUSE, LLC, a California limited liability company; and DOES 1 through 100, inclusive,

Defendants.

Case No. 23CV420315

**ORDER DENYING DEFENDANTS'
MOTION TO QUASH THIRD PARTY
SUBPOENAS**

Defendants' motion to quash third party subpoenas came on for hearing before the Court on June 12, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on June 11, 2025.

I. Background

Plaintiff Second Osborn LLC ("Second Osborn") filed this lawsuit on August 2, 2023 asserting claims for fraud and alter ego against Brent Weiteh Lee, Le Garden HA, LLC, Le Garden HC, LLC, Le Garden HD, LLC, and Le Garden House LLC. Plaintiff alleges it entered an agreement with Le Garden HB, LLC ("Le Garden HB") that required Le Garden HB to become obligated to comply with a ground lease associated with property Plaintiff owned at the time. According to Plaintiff, Brent Weiteh Lee owned Le Garden HB and provided false information about his finances which induced Plaintiff to enter the agreement. Plaintiff ultimately obtained a judgment against Le Garden HB, and Mr. Lee then transferred all assets out of Le Garden HB into his other business entities to avoid paying the judgment. Plaintiff sought compensatory and general damages in the amount of \$133,559,132.52, among other relief.

After obtaining default against all Defendants in August 2023, a prove up hearing on July 29, 2024, and additional briefing and submissions, judgment was entered against all Defendants on January 29, 2025 in the amount of \$2,900,094.94, comprised of \$2,306,369.57 principal, 563,624.95 prejudgment interest at a rate of 8.25%, \$28,082.35 in attorneys' fees, and \$2,018.07 in costs.

Plaintiff now seeks discovery regarding Mr. Lee's finances to aid in collecting on the judgment and accordingly served subpoenas on several banks for Mr. Lee's financial records. Defendants move to quash those subpoenas on the grounds that the judgment is void and should be set aside, the subpoenas are not permitted under the Code of Civil Procedure, and the information sought by the subpoenas violate Mr. Lee's privacy rights. None of these arguments hold weight.

First, the Court denied Defendants' motion to set aside default and default judgment by order of this same date.

Next, *Shrewsbury Management, Inc. v. Superior Court* (2019) 32 Cal.App.5th 1213 is directly on point, still good law, and plainly permits the discovery Plaintiff seeks. Defendants provide no

explanation in their reply for failing to cite this case. Indeed, Defendants do not mention the case, much less try to distinguish it, on reply.

Finally, it is true litigants have privacy rights, but those rights are not absolute. To determine whether discovery violates state constitutional privacy rights, courts apply the balancing test articulated in *Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1. Under *Hill*, the party claiming violation of privacy rights must establish (1) a legally protected privacy interest, (2) an objectively reasonable expectation of privacy in the circumstances, and (3) conduct by propounding party that constitutes a serious invasion of privacy. (*Mathews v. Becerra* (2019) 8C.5th 756, 769, citing *Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1, 39-40.) Not every assertion of a privacy interest must be overcome by a compelling interest. When lesser interests are at stake, a more nuanced framework applies, with the strength of the countervailing interest sufficient to warrant the disclosure of private information varying according to the strength of the privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 556-57.)

Here, the documents sought are directly relevant to collecting on the judgment. And a protective order limiting who can view these records and requiring special treatment if filed in the public record as part of motion practice can adequately protect Mr. Lee's concerns.

Defendants' motion to quash is accordingly DENIED.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 10

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

SERENITY MSO, LLC, a Georgia Limited
Liability Company; and REZA GHORIESHI, an
individual,

Plaintiffs,

v.

PALO ALTO MIND BODY, a California
Corporation; M RAMEEN GHORIESHI, MD,
MPH, an individual; and DOES 1-10,

Defendants.

Case No. 24CV432080

**ORDER GRANTING MOTION TO
COMPEL ARBITRATION**